

Subject: Re: Article 14 - Targeted Petitioning Ban

From: Greg Christiana <gchristiana@town.arlington.ma.us>

Date: 4/26/24, 23:57

To: Stephen Harrington <sth.alist@gmail.com>

CC: Arlington Human Rights Commission <AHRC@town.arlington.ma.us>, Michael Cunningham <mcunningham@town.arlington.ma.us>

Hi Stephen,

The TMM Email List is a service provided by the Town of Arlington for Town Meeting Members and Town officials (including chairs of Town committees) to share materials with each other, with those materials moderated by the Town Moderator and viewable by members of the public. The TMM Email List is not a public forum.

Any questions you have about the law regarding the practice of the TMM Email List can be directed to Town Counsel.

Regards,

Greg Christiana
Arlington Town Moderator

From: Stephen Harrington <sth.alist@gmail.com>

Date: Friday, April 26, 2024 at 9:17 AM

To: Greg Christiana <gchristiana@town.arlington.ma.us>

Cc: Arlington Human Rights Commission <AHRC@town.arlington.ma.us>, Michael Cunningham <mcunningham@town.arlington.ma.us>

Subject: Re: Article 14 - Targeted Petitioning Ban

CAUTION: This email originated from outside your organization. Exercise caution when opening attachments or clicking links, especially from unknown senders.

Dear Town Meeting Moderator Greg Christiana,

As you are aware, I adhered to your arbitrary, ever changing rules which includes a "co-sponsor" for public petitions, pamphlets and communications with Town Meeting, a public body, asking XXXXX in the past.

As you are also aware, XXXXX, a small business owner, asked to not be involved in writing to you, after your criticism of my petition, fearing retribution.

I think the attached email from Kristin Anderson, a town meeting member in my precinct who refused to submit the same petition for me, waiting until the deadline for submission passed, after she communicated with you and another elected official, Town Clerk Juli

Brazile, denigrating me with you for even a simple request, may convince a reasonable person; your co-sponsor for speech by members of the public is designed to censor individuals and deny them their civil rights.

You counsel's legal theory, that a Town Meeting Moderator has authority with all members of the public in terms of speech outside the confines of Town Meeting, when no enclosure has been declared, is flawed. Unless you can point to a bylaw requiring co-sponsors of petitions, pamphlets and communications to a public body, I will demand you submit on my behalf.

See how easy that is, you already agreed this petition is valid even under your arbitrary rules. A confident, mature official would "co-sponsor" this petition on behalf of residents.

Unless, of course, the purpose of your arbitrary rules are to silence those with whom you disagree with, like a Reddit moderator might.

As well, as you are also aware, a large fraction of the Town Meeting membership has been advised to block emails from residents using the Town supplied list of TMM email addresses. I have dozens of complaints, with one prominent member declaring that unless it came through the official channels, they did not want to see it.

But you knew that already.

Stephen Harrington

P.S. you are also aware that the AHRC responds to official complaints hiding behind a pseudonym because officials seek a monopoly on anonymity.

On Fri, Apr 26, 2024 at 8:02 AM Greg Christiana <gchristiana@town.arlington.ma.us> wrote:

Hi Stephen,

As you're aware, materials can be sent to Town Meeting Members electronically by various means, including via email using the publicly available contact list which has been updated recently with the 2024 roster:

<https://www.arlingtonma.gov/home/showpublisheddocument/69592/638489432142647670>

as well as the TMM Email List which requires that submissions be made from Town Meeting Members or other Town officials and must be within the scope of the agenda of Town Meeting. Your message is certainly applicable to Article 14.

Perhaps Mr. XXXXXX who has submitted materials on your behalf in the past would be amenable to doing so again this time. I'll leave it to you to work out such arrangements.

Again, if you have suggestions for changes you'd like to see in Town Meeting policies, I invite you to address the Town Meeting Procedures Committee in the future to redress your concerns.

Regards,

Greg Christiana
Arlington Town Moderator

From: Stephen Harrington <sth.alist@gmail.com>
Date: Thursday, April 25, 2024 at 1:47 PM
To: Greg Christiana <gchristiana@town.arlington.ma.us>
Cc: Arlington Human Rights Commission <AHRC@town.arlington.ma.us>, Michael Cunningham <mcunningham@town.arlington.ma.us>
Subject: Article 14 - Targeted Petitioning Ban

CAUTION: This email originated from outside your organization. Exercise caution when opening attachments or clicking links, especially from unknown senders.

Dear Town Meeting Moderator Greg Christiana,

Please, distribute this petition for Article 14 to the Town Meeting Members electronically.

Stephen Harrington
Precinct 11

Dear Town Meeting Members,

Please, vote NO on Article 14. If you must restrict protesters, adopt the time restriction substitute motion and not the speech restrictions.

Let us be honest, Article 14 is the no protest in front of Governor Maura Healey's residence.

I don't blame anyone who wants this type of activity to be banned, most dislike having to deal with other people's protests. Arlington frowns upon putting political signs on public property; even those "No Rat Poison" signs on the hell-strips next to sidewalks - there is a bylaw for that. Certainly, protests have become mobile these past few years and the need of protesters to center **everyone's** attention never greater, it seems.

The "narrowness" of the proposed bylaw, modeled on the Brookline bylaw, almost word for word, is the position proponents take.

Who are the proponents?

The Town Manager is the named proponent, which is unusual for a controversial article that touches upon limiting civil rights. The town counsel gave the "presentation" as such.

Neighbors complained about two protests at the Governor's residence during the Board's public hearing. I applaud them. Further, if I were them I might consider getting 10 signatures from other neighbors and submit a citizen's warrant article. It is not hard to get on the warrant, and as the hearings for Article 14 attests, these types of bans have widespread public support in Arlington. Even the Board of Selectmen voted for Article 14. Surely Board member and supporter Stephen DeCoursey should have advised his neighbors on how to do so, although his conflating the use of a public sidewalk with privacy during his statements at the Board hearing was unconvincing.

Strike 1. The Town Manager should not have been the proponent

The Town counsel [was overheard to say during the public hearing](#):

However, I would suggest that it would focus on the fact that this is about every residence in town. This ordinance, because it has to be content neutral, it would apply to many things that involve unwanted speech when a person is inside their residence. I'd have to stress that. It's a town-wide ordinance that applies to every residence in town, if adopted, and that it would be any type of speech that constitutes picketing under the definition of picketing, whether it's one side of an issue or another. It can't be something that targets specific types of speech or actions of picketing. It has to be across the board. That's what makes it neutral. That's what makes it fair. That's what makes it constitutional.

No picketing allowed in front of every residence in town, regardless of the content of the speech.

- Picketing by teachers, as the Newton school teachers did last year and since Arlington schools are located in residential neighborhoods, would not be allowed in Arlington.
- Picketing for/against Donald Trump during the presidential election 150' from polling places, all located in residential neighborhoods, would not be allowed in Arlington.
- Picketing by Stop and Shop unionized workers where residences abut on one side of the parking lot, would not be allowed in Arlington.
- Picketing a police officer's children's school, with deranged homemade signs naming the officer, would *no longer* be allowed in Arlington, because the school is in a residential neighborhood.

Now, some might claim, these hypotheticals are not relevant since only a loon would enforce such a bylaw on those activities. Some will dismiss these outright as though a 25yo patrolman can instantly determine which picketing is "targeted" while not considering the "content".

If this "targeted picketing" ban is so firmly rooted in constitutional law, why doesn't the Commonwealth pass such a *law*? Maybe the Governor might have some influence with the legislature?

We all know why the Governor doesn't introduce legislation to ban targeted picketing state-wide with the power of state law. But Arlington should?

Strike 2. This bylaw curiously has not been introduced as a state-wide ban.

There is, reportedly, a state trooper doing guard duty on the governor's residence all the time. No doubt specially trained as part of the Governor's detail, able to command additional resources; probably local law enforcement, helicopters, horses and light artillery at a moment's notice.

Arlington has young patrol men and women and is actively recruiting to fill the ranks. Capable, no doubt, but really what can Arlington's police do that the State police can not do? Write a ticket?

As Arlington Police Chief Julianne Flaherty was heard to say there were three protests at the Governor's residence in the past 9 months:

So, first protest, early in the fall. It was a planned protest. I believe the organizers had come before the board or had asked the select board for permission, and we were able to communicate with the organizers. It was very peaceful. The second protest was on October 14th in 2023. That occurred at about 9 p.m. This instant, there were 25 to 30 protesters who parked about a mile away from the governor's house, marched in formation, wearing military clothing, face coverings, hats, to the governor's house where they formed up in front of the house. They had flares. They were chanting. They had horns, and they were using obscenities to the police officers, to the residents who had come out, and after about 20 minutes, they dispersed. The third protest was on February 10th. That occurred at around 6.30 p.m., and that was very similar to the second protest where these 25 to 30 protesters marched from a different location to the governor's house where they lined up. Same type of behavior. They had flares. They had horns, and that protest lasted for about nine minutes.

The last two protests, where APD received numerous noise complaints, lasted 20 minutes and 9 minutes, according to the chief. These protesters are looking for attention, and might welcome a video-tapped over reaction by responding police. It appears to be what these types of protesters do, we have all seen that too often.

Why does Arlington want to risk its community policing by enforcing a "**bylaw**" when better equipped law enforcement is already on the scene? Why take a risk of mishandling an intentional provocation? What is Arlington's upside?

As anyone who follows Arlington knows, public employees at Town Hall and employees at Cambridge Savings Bank, were subjected to "first amendment" trolls, similar in purpose to the Healey protesters, looking to videotape a police response. The town hall employees performed remarkably well and never resorted to calling the police. Why change an approach that works?

Finally, were a child or loved one of ours injured or worse as a direct consequence of a policy by an elected official, by the most powerful person in the Commonwealth, what right does Arlington have to restrict their protest? Have you never heard of Cindy Sheehan?

Strike 3. Arlington should not be testing novel legal theories in restricting speech aimed at the Governor of Massachusetts.

Please, vote NO on Article 14. If you must restrict protesters, adopt the time restriction substitute motion and not the speech restrictions.

Stephen Harrington

CC: AHRC

BCC: Others